

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Seth Ullman	Team: Team # 1	CCRB Case #: 200812290	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 08/10/2008 6:30 PM	Location of Incident: § 87(2)(b) and § 87(2)(b)	Precinct: 83	18 Mo. SOL 2/10/2010	EO SOL 2/10/2010	
Date/Time CV Reported Sat, 08/23/2008 12:38 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sat, 08/23/2008 12:38 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Martin Haber	29395	934741	083 PCT
2. SGT Nicholas Vandyke	02363	927819	083 PCT
3. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Brian Tiernan	25728	933411	083 PCT
2. POM Peter Rubin	05057	933299	083 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Nicholas Vandyke	Abuse: Sgt. Nicholas Vandyke authorized the stop of § 87(2)(b)	
B.POM Martin Haber	Force: PO Martin Haber used physical force against § 87(2)(b)	
C. An officer	Abuse: An officer stopped § 87(2)(b)	
D. An officer	Abuse: An officer searched § 87(2)(b)	
E.SGT Nicholas Vandyke	Abuse: Sgt. Nicholas Vandyke supervised the search of § 87(2)(b)	
F.POM Martin Haber	Discourtesy: PO Martin Haber acted rudely toward § 87(2)(b)	

Synopsis

On August 10, 2008, § 87(2)(b) filed an incomplete complaint on the call processing system immediately following the incident. Investigator Welker from the CCRB attempted to contact him following that message, and he left her a message stating that he did not have time to following through with his complaint at that point. He refiled his complaint on August 23, 2008, again on the call processing system.

On August 10, 2008, § 87(2)(b) and his acquaintance, § 87(2)(b) were standing at the south corner of the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn. PO Martin Haber, Sgt. Vandyke, PO Peter Rubin and PO Brian Tiernan, all of the 83rd Precinct approached them (**Allegation A**) and PO Haber allegedly placed § 87(2)(b) a full-nelson (**Allegation B**). § 87(2)(b) was stopped and an unidentified officer took his identification from his pocket (**Allegations C and D**). One of PO Haber's partners, though § 87(2)(b) did not see which, allegedly searched him by removing his wallet, and several frisked him (**Allegation E**). PO Haber allegedly spit in § 87(2)(b)'s direction (**Allegation F**).

§ 87(2)(g)

Summary of Complaint

§ 87(2)(b)

§ 87(2)(b) is a § 87(2)(b), 5'11", 210 lb. black male with black hair and brown eyes. On the date of his in-person statement, § 87(2)(b) worked § 87(2)(b), and resided at § 87(2)(b) in the Bronx. On August 23, 2008, § 87(2)(b) left a summary of the incident as part of the filing of his complaint on the call processing system (Encl. 6a – 6b). He provided a full sworn statement at the CCRB on September 15, 2008 (Encl 7a – 7n). § 87(2)(g)

CCRB Testimony

On Sunday, August 10, 2008, § 87(2)(b) was coming from the grocery store to buy some food. He was with § 87(2)(b) a man he knows from growing up in the area, but they are not close friends. § 87(2)(b) was going to get a haircut, and they “bee-lined” together, chatting. § 87(2)(b) and § 87(2)(b) were talking about “normal stuff,” such as the fact that § 87(2)(b) had recently secured employment, and their time in the military.

They walked west on § 87(2)(b) toward the southeast corner of § 87(2)(b). They stood on the corner, on the sidewalk, and spoke for approximately four minutes. § 87(2)(b) stood against a phone booth located near the north side of the sidewalk, between § 87(2)(b) and the street. Neither of them made any phone calls. They spoke to only each other. It was the day of the Dominican Day Parade and so people were out celebrating on the street, though the corner was not adjacent to the parade and no one else stood on the corner. There was a little pedestrian traffic and a medium amount of vehicular traffic.

§ 87(2)(b) wore baggy, but fitting khakis, a t-shirt which went to his waist area and covered his pants' pockets and sneakers, without a hat. He had his wallet in his right, back pocket. He had loose change in his front right pocket. He had nothing else in his pockets and was not carrying a cell phone. § 87(2)(b) was wearing a baseball cap, t-shirt and jeans. He had a cell phone. Neither individual was carrying a bag or anything else.

He observed a dark blue Chevy car, with tinted windows, stop at the intersection while driving east on § 87(2)(b) and turn the corner to go south on § 87(2)(b). The car's two passenger's side windows were rolled down. As the car was turning, § 87(2)(b) looked up and saw an officer, identified by the investigation as PO Martin Haber, in the back passenger seat, look at him as the car turned, at a distance of about fifteen to twenty feet. § 87(2)(b) turned back to § 87(2)(b) and continued speaking, and then

turned back to look at the car and saw that PO Haber was still looking at him. He described PO Haber as a white male, standing at 5'9" or 5'10." He was in his mid-to-late 30's, bald and dressed casually, in plain-clothes.

About five minutes after § 87(2)(b) first observed the vehicle, he saw it return, driving slowly westbound on § 87(2)(b) on the same block as he and § 87(2)(b) took his cell phone out of his pocket. § 87(2)(b) and § 87(2)(b) had been conversing on that corner for approximately ten minutes at that point. He again observed PO Haber looking at him, and he commented to § 87(2)(b) asking what was going on.

The vehicle pulled up and stopped on the crosswalk on the same corner of the intersection on which he and § 87(2)(b) were speaking. The approximately six-to-seven plain-clothed, male officers inside all exited the vehicle. None of them said anything. § 87(2)(b)'s hand was in his right pocket, playing with the change.

PO Haber approached § 87(2)(b). Since he did nothing wrong, § 87(2)(b) assumed that the officer would leave him alone and turned his head back towards his friend, resuming their conversation. PO Haber walked behind § 87(2)(b) and put him in a "full nelson headlock."¹ By this he meant that PO Haber used both of his hands to push § 87(2)(b)'s head forward and to push § 87(2)(b)'s arms up from his sides so that they were away from his body, in a "t" shape, at shoulder level. This made § 87(2)(b) lean his body forward while remaining standing.

There were six to seven officers, all of whom were male and wearing casual plain-clothes. Three of the officers were wearing hats. He observed no shields. He saw guns in the officers' waistbands. None of the officers were obviously in charge, besides possibly PO Haber.

§ 87(2)(b) attempted to return his hands to his pockets. PO Haber told § 87(2)(b) to keep his hands out of his pockets, and lifted § 87(2)(b)'s arms up again. § 87(2)(b) asked him who he was and what he was doing. PO Haber did not answer, but continued to ask § 87(2)(b) to keep his hands out of his pockets. § 87(2)(b) did not comply with PO Haber's command to keep his arms up, but rather again attempted to place his hands in his pockets. He did not understand what was happening, and tried to put his hands in his pockets because that is his normal position. None of the officers identified themselves as officers up to this point.

§ 87(2)(b)'s head was bent forward, but he could "kind of" see § 87(2)(b). An officer, who may have been Hispanic and was wearing a hat, took identification out of § 87(2)(b)'s pocket. § 87(2)(b) standing in the same spot by the telephone pole, conversed with a different officer.

The other officers approached. § 87(2)(b) continued to ask the officers what was happening and none of them responded. § 87(2)(b) became frustrated and angry. The officers did not ask § 87(2)(b) any questions. An unidentified officer took § 87(2)(b)'s wallet, with his identification, out of his pocket. Multiple officers frisked § 87(2)(b) patting him from his feet to his head. In this process one of the officers reached into § 87(2)(b)'s pocket, removing the change, and then replaced the change. § 87(2)(b) could not see the officers who were performing these actions because they were behind him. § 87(2)(b) was released from the full-nelson after a total of one to two minutes.

PO Haber and the other officers walked away to check § 87(2)(b)'s identification. As he walked away, PO Haber spit back toward § 87(2)(b) and his spit landed half a foot away from § 87(2)(b)'s right foot. § 87(2)(b) believed that PO Haber spit at him intentionally. § 87(2)(b) responded by spitting toward PO Haber because he was angry, and his spit landed two to three feet away from PO Haber, not making any physical contact with his person. The officers returned, about two minutes later, having found nothing on § 87(2)(b). An officer said, "Okay, I guess he's alright." § 87(2)(b) replied that he could have told the officers that he did not have anything on him. An officer, whom § 87(2)(b) could not recall, returned § 87(2)(b)'s wallet. At some point § 87(2)(b) observed an unidentified officer

¹ In § 87(2)(b)'s intake statement he asserted that he was placed in a "half-nelson" headlock.

return § 87(2)(b)'s identification. At some point, an unidentified officer informed § 87(2)(b) that he could be arrested for spitting as he did. He replied, "Okay, officers are basically above the law then."

§ 87(2)(b) was angry. He asked who they were and what was going on and why the situation was occurring. § 87(2)(b) told the officers that § 87(2)(b) said, "If that's how it is, fuck this country, and fuck ya'll too."

PO Haber approached § 87(2)(b) and tried to handcuff one of his arms by "throwing" the handcuff onto his arm with one hand. It took three to four times before he was successful. PO Haber pulled one arm back, and with the assistance of another officer he could not recall, attempted to handcuff § 87(2)(b)'s other hand. He told § 87(2)(b) not to resist because § 87(2)(b) attempted to put his arms in front of him, though they were still behind him. PO Haber said, "You should have kept your mouth closed." § 87(2)(b) said that it would have gone better if the officers had just identified themselves and explained what they were doing. § 87(2)(b) said that the handcuffs were too tight. An officer said, "Don't cry now."

A patrol van with uniformed police officers arrived about thirty seconds after § 87(2)(b) was handcuffed and § 87(2)(b) was brought to the 83rd Precinct Stationhouse, along with PO Haber. He was released with a summons for obscene language, and then went home. Following the incident, he called the stationhouse, and asked for the information about the officer that had brought him to the precinct. They supplied him with PO Haber's name and shield number, which matched the name on the summons he was issued.

§ 87(2)(b) was presented photo array A, with six photos, immediately following his statement. He was absolutely certain that photo 4 was PO Haber, which was the case. He wrote that "P.O Haber approached me and put me in the full nelson (headlock). He spit near my foot."

§ 87(2)(b) did not file a notice of claim regarding this incident (Encl. 14l).

Results of Investigation

§ 87(2)(b) lives in Brooklyn. He provided witness statements to the CCRB over the phone on September 23, 2008 and December 29, 2008, but was not interested in coming in to provide a sworn statement (Encl. 8a – 8b). During his second statement, he withdrew the allegations for which he was a victim, though he never returned the signed withdrawal. § 87(2)(b)

He confirmed that he was not influenced or coerced by any members of the CCRB or the NYPD to withdraw his complaint, rather, he was not upset about the incident. He agreed to sign a withdrawal form. Repeated attempts to contact him following these statements were unsuccessful. § 87(2)(g)

§ 87(2)(b) knows § 87(2)(b) from the neighborhood as a veteran and a "cool guy" who "has a temper." § 87(2)(b) said that § 87(2)(b) who he called "§ 87(2)(b)" has an attitude problem."

A blue Impala stopped at the red light near where § 87(2)(b) and § 87(2)(b) were speaking at § 87(2)(b) and § 87(2)(b) in Brooklyn. An officer, sitting in the back seat, stuck his head out the window and stared at § 87(2)(b). § 87(2)(b) stared back. The officers drove away and returned. The same officer and § 87(2)(b) again stared at each other. § 87(2)(b) flared his hands, raising them, multiple times, as if to say, "What?" The plainclothed officers got out of their vehicle and § 87(2)(b) angrily made statements to the effect of "This is bullshit," and "I served this country," and accused the officers of harassment. An officer identified by the investigation as PO Haber put § 87(2)(b) in a "full-nelson." PO Haber later checked § 87(2)(b)'s identification. PO Haber said things like, "Watch your attitude." Officers searched § 87(2)(b). An officer asked if § 87(2)(b) had identification and he said he did. The officer said to § 87(2)(b) "You don't have anything on you, right?" § 87(2)(b) agreed that he did not. An

officer "searched" him, taking his identification and checking it. The officers never specified any specific reason that he and § 87(2)(b) were stopped.

An officer spit one to two feet from § 87(2)(b) as the officer walked away. § 87(2)(b) pointed this out, otherwise § 87(2)(b) would not have noticed. § 87(2)(b) was not sure if it was intentional or not, and he could not identify the officer who allegedly spat.

Officer Statements

PO Martin Haber

PO Haber is a § 87(2)(b)-old, 5'10", 195 lb white male with brown hair and blue eyes. He was interviewed at the CCRB on November 14, 2008.

Memo Book (Encl. 9a – 9b)

At 6:33 PM, there was a criminal arrest of § 87(2)(b) at the corner of § 87(2)(b) and § 87(2)(b). At 7:00 PM, he was released with a criminal summons.

Police Documents

PO Haber filled out a summons § 87(2)(a) 160.50, at the corner of § 87(2)(b) and § 87(2)(b) (Encl. 9c)

CCRB Testimony (Encl. 9j – 9l)

PO Haber was working anti-crime on RDO overtime due to the Dominican Day Parade, with his regular partners, Sgt. Van Dyke and PO Tiernan. They were in a blue Crown Victoria, § 87(2)(e), § 87(2), seated in the back. PO Haber could not recall who was driving on that day. He was wearing jeans and a t-shirt; it was a nice sunny day. His partners were wearing the same.

There was an open robbery pattern in the 83rd Precinct in the immediate area of the incident, in sector BD, "probably" three to four days prior to the incident. PO Haber did not know the robbery pattern's number. § 87(2)(b) fit every aspect of the description of an individual described in this pattern. This description was of a black male in his § 87(2)(b) who was 5'10" to 6'0", between 190 and 210 lbs. There was no further description of this individual. In response to the investigator's inquiry regarding the type of robbery, PO Haber stated, "I don't know. Mostly strong-arm."

The officers were driving northbound on § 87(2)(b) and PO Haber observed § 87(2)(b). PO Haber recognized § 87(2)(b) as matching the description in the robbery pattern and indicated this observation to the other officers. He had observed § 87(2)(b) for less than one minute before stopping him. This was the only time that PO Haber observed § 87(2)(b) on that day. He believed that he had not been on that corner previously on that tour. PO Haber had not seen § 87(2)(b) before or since the date of this incident.

The officers stopped their vehicle on the southwest corner of § 87(2)(b) and § 87(2)(b). § 87(2)(b) was with one other individual, a black male, who was one or two feet away, at conversation length, standing at the southwest corner of the intersection, where there is a pawn shop. They stayed in this proximity to each other throughout the incident on the scene. They were standing on the corner talking. PO Haber did not recall whether § 87(2)(b)'s hands were in his pockets or if either civilian was speaking on a cell phone. PO Haber could not recall what § 87(2)(b) was wearing. PO Haber approached § 87(2)(b) because he fit the description in the robbery pattern and for no other reason.

PO Haber took out his shield as he approached § 87(2)(b). He said, "Police, how are you doing?" PO Haber asked § 87(2)(b) for his identification because he wanted to correctly identify who he was. PO Haber asked § 87(2)(b) basic questions such as who he was and where he was going. § 87(2)(b) replied, "What the fuck do you want?" and did not answer the questions. PO Haber did not touch § 87(2)(b) in any way upon his first approach.

As the conversation continued, § 87(2)(b) became increasingly aggravated with the fact that he was being asked for identification. As § 87(2)(b) became increasingly belligerent, PO Haber believed that

one of his other partners exited the police vehicle. § 87(2)(b) acted as though he thought that the police were antagonizing him. § 87(2)(b) said something like, “What are you doing? What the fuck are you doing? Leave me alone. What you want?”

Neither PO Haber nor either of his partners ever asked § 87(2)(b) s friend any questions or collected his identification. He was not detained in any way, frisked or handcuffed. § 87(2)(b) s friend did not react to the situation in any way.

Eventually, after being asked a total of two or three times, § 87(2)(b) provided his identification. PO Haber pulled out his memo book to issue § 87(2)(b) a C-Summons § 87(2)(a) 160.50, due to his agitated behavior and cursing. As PO Haber did this, § 87(2)(b) said, “What the fuck are you doing?” PO Haber replied that he was writing § 87(2)(b) a ticket § 87(2)(a) 160.50. § 87(2)(b) replied, “Fuck this, § 87(2)(b), I don’t need this.” PO Haber told him that he had become more belligerent, and “you just don’t act like this towards the police. We just want to have a nice little day. You know. That’s it.” § 87(2)(b) was visibly shaken and upset. § 87(2)(b) s voice was elevated. PO Haber was not speaking in an elevated tone. PO Haber was in the middle of checking § 87(2)(b) s identification by phone.

All three of the officers were out of the vehicle at this point. A crowd of about ten began to form. They came from the nearby laundromat and liquor store. Earlier in his statement, PO Haber had noted a Chinese restaurant. § 87(2)(b) became increasingly agitated and began to flail his arms. PO Haber did not believe that § 87(2)(b) had interactions with the other officers, but was uncertain. PO Haber was the only officer who had physical interactions with § 87(2)(b). The other officers did not frisk or search him.

Three to four minutes after PO Haber began interacting with § 87(2)(b) for the people in the vicinity’s safety, PO Haber made the decision to handcuff § 87(2)(b) and did so. § 87(2)(b) did not resist. PO Haber searched § 87(2)(b) “everywhere” for the officers’ safety, but did not frisk § 87(2)(b). PO Haber reached into § 87(2)(b) s pockets, but did not remove anything. The officers and § 87(2)(b) returned to the stationhouse to issue § 87(2)(b) a summons. At the stationhouse, he was issued a summons and released.

PO Haber did not recall whether § 87(2)(b) ever spit on the scene. None of the three officers on the scene spit during the course of this incident. PO Haber is familiar with the full-nelson maneuver. He would never use it to anyone on the street. Later that tour, they stopped another individual based on that pattern. PO Haber stated that a Stop and Frisk Report was prepared for a § 87(2)(b) later that evening in regards to the same open pattern that precipitated the stop of § 87(2)(b).

Sgt. Nicholas Vandyke

Sgt. Vandyke is a § 87(2)(b) -old, 5’8”, 200 lb white male with brown hair and hazel eyes. He was interviewed at the CCRB on April 25, 2009.

Memo Book (Encl. 12a – 12b)

At 6:33 PM, PO Haber took one person § 87(2)(a) 160.50 at § 87(2)(b) and § 87(2)(b).

CCRB Testimony (Encl. 12c – 12e)

On August 10, 2008, Sgt. Vandyke was working with PO Haber, PO Tiernan and PO Rubin. He was sitting in the front passenger seat. PO Haber pointed out § 87(2)(b) and noted that he looked like the suspect in an open robbery pattern. PO Haber and the other officers approached. § 87(2)(b) became verbally combative in response to PO Haber’s general inquiries. Sgt. Vandyke began to explain what they were doing with the other civilian. Several seconds into his explanation, Sgt. Vandyke heard § 87(2)(b) become more and more verbally combative with PO Haber. He turned around and saw § 87(2)(b) push PO Haber’s hand away from his body in a non-aggressive manner. PO Haber’s hand had been going toward one of § 87(2)(b) s hip pockets, which had a rectangular bulge in it with dimensions that he could not recall. This was the first time that Sgt. Vandyke had noticed that bulge. PO Sgt. Vandyke told PO Haber, “Put him into handcuffs for the time-being. Let’s find out who he is.” Sgt. Vandyke did this for the

officers' safety, because in his experience, the act of resisting the frisk of a bulge suggests the possibility of a weapon on that person.

PO Haber handcuffed § 87(2)(b) without incident. Sgt Vandyke did not believe that § 87(2)(b) was frisked or searched prior to being handcuffed. § 87(2)(b) yelled toward passing civilians and a crowd formed. PO Haber frisked § 87(2)(b) but did not search him. Sgt. Vandyke did not like the dynamic of the forming crowd, and so he said to bring him into the stationhouse to verify who he was.

Neither he, nor any other officer he has observed has ever used a full-nelson hold on that day or any other. Sgt. Vandyke never saw any of the officers spit in the direction of § 87(2)(b) or hear them talk about spitting toward § 87(2)(b). He did not recall whether § 87(2)(b) spit in the direction of any of the officers during the incident.

PO Brian Tiernan

PO Tieran is a § 87(2)(b)-old, 5'11", 195 lb, white male with brown hair and blue eyes. He was interviewed at the CCRB on April 22, 2009.

Memo Book (Encl. 10a)

PO Tiernan had no memo book entry related to this incident. At 7:20 PM he recorded two summons served.

CCRB Testimony (Encl. 10e – 10f)

The officers approached two men, and one of the men, identified by the investigation as § 87(2)(b) immediately became belligerent, shoving his previously free hands into his pockets suggesting he had contraband or a weapon, cursing, screaming, and spitting in the direction of the officers. The spitting was clearly directed toward the officers with intentionality, though it did not make contact with any of the officers, landing several feet away. A crowd began to form.

PO Haber attempted to handcuff § 87(2)(b) and he became agitated and moved around, backing up and not placing his hands behind his back. After a couple seconds, PO Haber successfully handcuffed § 87(2)(b) and an officer who PO Tiernan could not recall frisked him. Neither PO Haber nor any of his partners spit toward § 87(2)(b). None of the officers had any physical interactions with either of the civilians save the handcuffing of § 87(2)(b). PO Haber did not make contact with § 87(2)(b)'s neck or head during the handcuffing or the frisk, or at any other point. He had no specific recollection of stopping anyone based on a description or specific perpetrator descriptions being looked for on that date.

PO Peter Rubin

PO Rubin is a § 87(2)(b)-old, 5'7", 175 lb Hispanic male with brown eyes and black hair. He was interviewed at the CCRB on April 30, 2009.

Memo Book (Encl. 11a – 11b)

PO Rubin had no memo book entries regarding this incident. He had an arrest at 7:22 PM, which was his first entry of the tour.

CCRB Testimony (Encl. 11c – 11d)

PO Rubin noted that on his anti-crime team, the officers review the complaint reports prior to their tour to obtain descriptions of suspects in given areas, and they discuss patterns found for particular areas and times. They then look for matching faces in their online photo manager database, which they print and carry with them on duty. They also carry the complaint reports. They generally noted that they will check complaint reports up to ten days prior, as complaints can stay open. The detective squad more deeply analyzes the patterns. They do not obtain patterns or other conditions that they look for from any other source.

They all approached two males on the corner. PO Haber had the initial interaction with the civilians. One man was calm and relaxed. One male, identified by the investigation as § 87(2)(b) refused to remove his hands from his pockets, where they had been upon their approach. § 87(2)(b) yelled and spit at PO Haber about ten seconds after PO Haber's approach. § 87(2)(b)'s act of spitting was not in response to

any action in particular. Immediately prior, PO Haber had asked § 87(2)(b) to remove his hands from his pockets. The incident was quiet.

PO Rubin did not recall whether § 87(2)(b) resisted in any way. He did not recall § 87(2)(b) being frisked or searched on the scene. Because of the people on the street, § 87(2)(b) was brought back to the stationhouse, where he was released with a summons. Another vehicle had to come and pick up some of them as there had been four officers in one vehicle. He did not see any officers use a full-nelson hold on the date of the incident. None of the officers on the scene used force in any capacity during the incident, save possibly the forcible removal of his hands from his pockets.

NYPD Documents

The SPRINT indicates that § 87(2)(b) was arrested at 6:35 PM and released at 7:39 PM (Encl. 13d). All four officers are listed on the roll call as part of the Dominican Parade Detail assigned to anticrime (Encl. 13g). The command log shows that § 87(2)(b) was entered as an arrest at 6:45 PM and released with a summons at 7:00 PM (Encl. 13j). The prisoner holding pen roster registers § 87(2)(b) as present between those times (Encl. 13k). None of the open patterns match either the incident or the officers description of the open pattern that § 87(2)(b) was alleged to fit (Encl. 13n – 13af). A complete set of complaint reports from the 83 PCT for robberies that occurred within the ten days before the incident within approximately a four block radius do not contain obviously matching suspects. Most black male suspect descriptions included the fact that they were teenagers (Encl. 13ag – 13bs).

Civilian CCRB and Criminal Conviction History

This is § 87(2)(b)'s only complaint with the CCRB (Encl. 3a). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Subject Officers CCRB History

PO Haber has not had a complaint substantiated against him in his five-year tenure with the CCRB (Encl. 1a – 1b). Likewise, Sgt. Vandyke has not had a complaint substantiated against him in his eight-year tenure with the CCRB (Encl. 2a).

Conclusions and Recommendations

Identification of Subject Officers

Sgt. Vandyke stated that all of the anticrime officers looked at open patterns prior to their patrol. He learned of the robbery pattern described above, and noted § 87(2)(b) prior to PO Haber's approach.

§ 87(2)(g)

§ 87(2)(b) and § 87(2)(b)'s description of the man who used a full-nelson against § 87(2)(b) matches that of PO Haber, who by all accounts was the primary officer who interacted with § 87(2)(b). § 87(2)(b) identified PO Haber in a photo array as the officer against whom he made his allegations, further confirming his identity. § 87(2)(g)

§ 87(2)(b) did not see which of the other officers frisked or searched him. None of the officers admitted to these actions as alleged, § 87(2)(g)

Undisputed Facts

By all accounts, PO Haber and his partners approached § 87(2)(b) and § 87(2)(b). § 87(2)(b) became disorderly, was frisked on the scene and was brought to the stationhouse and released with a summons § 87(2)(b)

Disputed Facts

§ 87(2)(g)

§ 87(2)(g)

As described above, Sgt. Vandyke was the commanding officer on the scene when the officers approached § 87(2)(b) and was aware that he fit the description of a robbery suspect. He described himself as in command of the interaction, and ordering § 87(2)(b) to be handcuffed. § 87(2)(g)

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